



CHAPTER xlvii.

An Act for making further and better provision in regard to the markets and the supply of gas water and electricity by the Corporation of Colne and the improvement health and good government of the borough and for other purposes. A.D. 1905.
[30th June 1905.]

WHEREAS the borough of Colne in the county palatine of Lancaster is a municipal borough under the local government of the mayor aldermen and burgesses of the borough (in this Act called "the Corporation") and the Corporation acting by the town council are the urban district council for the borough and the following Acts and Orders are in force within the borough (that is to say):—

The Colne Gas Act 1877;

The Colne and Marsden Local Board Act 1881;

The Colne Corporation Act 1897;

The Colne Electric Lighting Order 1898;

The Colne Corporation Order 1903;

each of which Acts and Orders is in this Act referred to as the Act or Order of the year in which it was passed:

And whereas the Corporation are the owners of the gasworks which supply the borough and the urban district of Trawden and the parish of Foulridge with gas and it is expedient that their powers in connexion therewith should be extended:

And whereas the Corporation are the owners of the waterworks which supply the borough with water and they have in accordance with the powers conferred upon them constructed a reservoir and other works but in consequence of the increased

A.D. 1905. demand for water such reservoir and works have proved inadequate :

And whereas by the Act of 1897 the Corporation were authorised to construct a reservoir and other works at Wycollar and to purchase lands for the site thereof and for the protection of the watershed of such reservoir :

And whereas such lands have been purchased and are now held by the Corporation but the works authorised by the Act of 1897 have not yet been commenced inasmuch as the Corporation by sinking a well and constructing a pumping station upon lands acquired under the powers of that Act have obtained a supply of water which will be adequate for the supply of the borough for some time to come :

And whereas it is expedient that the Corporation should be empowered to maintain extend and enlarge the said well and pumping station :

And whereas the period fixed by the Act of 1897 for the completion of the works authorised by that Act will expire on the sixth day of August one thousand nine hundred and five and it is expedient that such period should be extended as in this Act provided :

And whereas by section 39 of the Act of 1897 the Corporation in connexion with their markets were authorised to demand from any person occupying or using any shop stand stall shed pen space of ground or place in the market place or buildings or ground for the sale of cattle or other live stock or any marketable commodities such stallages rents and tolls as the Corporation should appoint not exceeding the several stallages rents and tolls specified in the Third Schedule to that Act :

And whereas doubts have arisen as to whether the wording adopted in the said section 39 is such as to enable the Corporation to exercise in respect of marketable commodities the powers conferred by section 13 of the Markets and Fairs Clauses Act 1847 (incorporated with the Act of 1897) and it is expedient that the said section should be repealed and replaced by an enactment more aptly worded :

And whereas it is expedient that the Third Schedule to the Act of 1897 should be amended as in this Act provided for the purpose of correcting a verbal error in the wording thereof :

And whereas it is expedient that further provisions should be made as in this Act contained for the regulation of the markets of the Corporation :

And whereas the Corporation are supplying electricity under the powers conferred upon them by the Colne Electric Lighting Order 1898 and it is expedient that further powers be conferred upon them in connexion with their electricity undertaking :

And whereas it is expedient that further and better provision should be made with reference to buildings and streets and sanitary matters and for the improvement health rating and local government of the district and that the powers of the Corporation in relation thereto should be enlarged and extended :

And whereas it is expedient that the Corporation should be authorised to borrow the sums required for the purposes of this Act and that repayment thereof should be spread over terms of years :

And whereas the sum of twelve thousand pounds which the Corporation were by the Act of 1897 authorised to borrow for the purposes of a technical institute and the purchase of land in connexion therewith has proved insufficient and it is expedient that the Corporation should be authorised to borrow a further sum of five thousand pounds for the purposes of such institute :

And whereas the Corporation have expended on purposes of technical education sums in excess of the funds and rates applicable for those purposes and it is expedient that the Corporation should be authorised to make good such balances by borrowing as in this Act provided :

And whereas an absolute majority of the whole number of the Corporation at a meeting held on the second day of December one thousand nine hundred and four after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Colne and Nelson Times a local newspaper circulating in the borough such notice being in addition to the ordinary notices required for summoning such meeting resolved to promote the Bill for this Act and also resolved that the expense in relation thereto should be charged on the district fund and general district rate :

And whereas such resolution was published twice in the Colne and Nelson Times and has received the approval of the Local Government Board :

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And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Corporation at a further special meeting held in pursuance of a similar notice on the thirtieth day of January one thousand nine hundred and five being not less than fourteen days after the deposit of the Bill for this Act in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule of the Borough Funds Act 1903 have been observed :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Colne Corporation Act 1905.

Interpretation.

2. In this Act the following words and expressions have the meanings hereby assigned unless the subject or context otherwise requires :—

“ The borough ” means the borough of Colne in the county palatine of Lancaster :

“ The Corporation ” means the mayor aldermen and burgesses of the borough :

“ Borough fund ” “ district fund ” “ borough rate ” and “ general district rate ” mean respectively the borough fund district fund borough rate and general district rate of the borough :

“ The town clerk ” “ the surveyor ” “ the medical officer ” and “ the inspector of nuisances ” mean respectively the town clerk the borough surveyor the medical officer of health and the inspector of nuisances of the borough and include any persons duly authorised to act temporarily in those capacities respectively and “ the office ” in relation to any of the said officers

means the office of that officer at the town hall or at such other place as the Corporation may from time to time appoint :

“The Public Health Acts” means the Public Health Act 1875 and any Act for the time being in force amending the same:

“Daily penalty” means a penalty for each day on which an offence is continued after conviction :

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 applies for the time being within the borough :

“Dairyman” means any cowkeeper purveyor of milk or occupier of a dairy :

“Dairy” means and includes any farm farmhouse cowshed milk-store milk-shop or other place from which milk is supplied or in which milk is kept for purposes of sale :

“Sky sign” means any word letter model sign device or representation in the nature of an advertisement announcement or direction supported on or attached to any post pole standard framework or other support wholly or in part upon over or above any house building or structure which or any part of which sky sign shall be visible against the sky from some point in any street or public way and includes all and every part of any such post pole standard framework or other support The expression “sky sign” also includes any balloon parachute or similar device employed wholly or in part for the purposes of any advertisement or announcement on over or above any house building structure or erection of any kind or on or over any street or public way but shall not include—

(1) Any flagstaff pole vane or weathercock unless adapted or used wholly or in part for the purposes of any advertisement or announcement ;

(2) Any sign or any board frame or other contrivance securely fixed to or on the top of the wall or parapet of any building or on the cornice or blocking course of any wall or to the ridge of a roof Provided that such board frame or other contrivance be of one continuous face and not open work

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—

and do not extend in height more than three feet above any part of the wall or parapet or ridge to against or on which it is fixed or supported;

(3) Any word letter model sign device or representation as aforesaid relating exclusively to the business of a railway company and placed wholly upon or over any railway railway station yard platform or station approach belonging to a railway company and so placed that it cannot fall into any street or public place :

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section thirty-four of the Local Loans Act 1875 but does not include annuities rent-charges or securities transferable by delivery or any securities of the Corporation :

“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and rates and contributions leviable by or on the order or precept of the Corporation :

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government Department made or given or to be made or given by authority of any Act of Parliament.

Words and expressions to which meanings are assigned by the Public Health Acts have in this Act the same respective meanings.

3. The Lands Clauses Acts except the provisions thereof with respect to the taking of lands otherwise than by agreement and except section 127 of the Lands Clauses Consolidation Act 1845 are hereby incorporated with this Act. A.D. 1905.
Incorporation of Acts.

4. The limits within which the powers by this Act granted may be exercised shall (save where otherwise by this Act expressly provided) be the borough. Limits of Act.

PART II.

WATER.

5. The Corporation may maintain extend and enlarge the well pumping station and other works which have been constructed by them upon the lands at Wycollar acquired under the powers of the Act of 1897 as part of their water undertaking and the Corporation are hereby authorised to supply water therefrom as if the same formed part of the works authorised by that Act. Sanction of works constructed by Corporation at Wycollar.

6. If the works by the Act of 1897 authorised are not completed within ten years from the passing of this Act then on the expiration of that period the powers by that Act granted for the making thereof or otherwise in relation thereto shall cease except as to such of them or so much thereof as is then completed or except if and so far as that period may from time to time be extended by the Local Government Board Section 14 of the Act of 1897 (Time for completion of works) is hereby repealed. Extending time for constructing works under Act of 1897.

7. For the prevention of the pollution of any waters over which the Corporation have any powers of user or of any watercourse through which any water may for the time being flow into any such waters the Corporation may with the consent of the county council in whose county and of the district council in whose district such pollution occurs enforce the provisions of the Rivers Pollution Prevention Acts 1876 and 1893 or of the Public Health Acts with respect to any such waters and watercourses or in respect of any nuisance which may exist in proximity thereto prejudicially affecting such water or watercourse and the Corporation with such consent as aforesaid shall have and may if they think fit from time to time exercise such or the like powers as may for the time being be exercised by such county council or district council as the case may be under any Provisions as to fouling of water.

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enactment for the prevention of the pollution of any such water or watercourse or for the prevention or abatement of any such nuisance and the provisions of such enactment shall for the purpose aforesaid be extended and apply (*mutatis mutandis*) to the Corporation. Provided that if the county council in whose county and the district council in whose district the pollution occurs or is likely to occur refuse or neglect for the space of one month after being requested by the Corporation by notice in writing under the hand of the town clerk either to enforce the provisions of the said Acts or to consent to the enforcement thereof by the Corporation the Corporation may appeal to the Local Government Board who may give to them such consent and thereupon the Corporation may proceed to enforce the provisions of the said Acts.

Any expenses incurred by the Local Government Board in relation to any inquiry under this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector shall be paid by and recoverable from the Corporation or the county council or the district council or partly from the one and partly from the other or either of them as the Local Government Board may determine.

Notice to
Corporation
of connect-
ing or dis-
connecting
meters.

8. Before any person connects or disconnects any meter by means of which any of the water of the Corporation is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Corporation of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Corporation and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Injuring
meters.

9. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Corporation or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Corporation shall (without prejudice to any other right or remedy for the protection of the

Corporation) be liable to a fine not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained: A.D. 1905.

And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Corporation or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Corporation the Corporation may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Corporation by the person so offending and may be recovered by them as water rates are recoverable. The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Corporation when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

10. The Corporation may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter (but shall not manufacture) any such pipes valves cocks cisterns baths meters soil-pans waterclosets apparatus and receptacles as are required or permitted by their regulations and may provide all materials and do all work necessary or proper in that behalf and the reasonable charges of the Corporation in providing such materials and executing such work shall be paid by the person requiring the same. Power to supply materials.

11. The Corporation shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water. Corporation not bound to supply several houses by one pipe.

12. The Corporation may if they think fit allow a discount or rebate for prompt payment of water rates of a sum not exceeding five pounds per centum. Provided that such discount Discount on water rates.

A.D. 1905. or rebate shall be of equal amount under like circumstances to all consumers. Provided also that notice of the effect of this enactment shall be stated on the face of every demand note for water rate.

PART III.

GAS.

Charges for gas supplied by means of prepayment meters.

13.—(1) The Corporation may charge for any gas supplied through a prepayment meter a not greater charge rate or rent than would be charged for gas supplied to private consumers on the same premises through any other kind of meter or by any other method of supply.

(2) The Corporation shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid.

The said charge shall include the providing letting fixing repairing and maintenance of one meter and fittings and the cost of collection and other costs incurred by the Corporation in connexion with the meter and fittings.

(3) The maximum charge for the hire of each prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter to the Corporation and the provisions of this Act and of the Act of 1877 applicable to ordinary meters shall so far as applicable apply to prepayment meters.

(4) For the purposes of this Part of this Act the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Construction and placing of pipes between mains and meters.

14. In order to enable the Corporation to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

(1) The Corporation may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Corporation's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises:

- (2) The Corporation may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specification shall be published twice in some newspaper circulating within the gas limits and a copy thereof shall be kept exhibited in the office of the town clerk :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Corporation's main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Corporation and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Corporation Any officer of the Corporation duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Corporation's specification or if the meter is not placed as required by this section the Corporation may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (6) Any person to whom the Corporation refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Corporation's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

15. The Corporation may lay down place repair alter remove and renew mains pipes and culverts within their limits

Power to lay down and utilise pipes

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for ancillary
purposes.

of supply for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from any manufacture of gas or any residual products thereof and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid shall so far as applicable extend and apply to the laying down and placing repairing altering or removing and protection of such mains pipes and culverts.

Power to
require use
of anti-fluc-
tuators for
gas engines.

16. Every consumer of gas supplied by the Corporation who uses a gas engine shall if required to do so by the Corporation use an effective anti-fluctuator of approved make or pattern and shall at all times at his own expense keep such anti-fluctuator in proper repair and in default of his so using or keeping such anti-fluctuator in proper repair the Corporation may cease to supply gas to such consumer. The Corporation shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Corporation if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Power to
supply gas
fittings for
heating and
other pur-
poses.

17.—(1) The Corporation may sell let for hire or otherwise deal in fix repair and remove (but shall not manufacture) engines stoves ranges meters tubes pipes and other fittings articles and things connected with gasworks or for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used (in this section referred to as "fittings") and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Corporation and the persons to or for whom the fittings are sold let fixed up repaired or removed.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or

a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Corporation as the actual owners thereof. A.D. 1905.

18. Twenty-four hours' notice in writing shall be given to the Corporation by every gas consumer before he shall quit any premises supplied with gas by meter by the Corporation and in default of such notice the consumer so quitting shall be liable to pay to the Corporation the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Corporation to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent payable to the Corporation.

Gas consumers to give notice to Corporation before removing.

19. If a person requiring a supply of gas for any premises occupies or has occupied other premises at which gas was supplied to him by the Corporation without paying to them all gas or meter rent due from him to the Corporation they may refuse to furnish to him a supply of gas for such first mentioned premises until he pays the same.

Power to refuse a supply to persons in debt for other premises.

20. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Corporation.

Period of error in defective meter.

21. The Corporation may if they think fit allow discounts or rebates not exceeding in the case of discounts for prompt payment of gas rents ten pounds per centum and in the case of discounts for large consumption or in respect of gas supplied by contract or for motive power fifteen pounds per centum upon such scale and subject to such conditions and regulations as may be prescribed by special contract in writing between the Corporation and any of such consumers. Provided that such discounts or rebates shall be of equal amount under like

Discounts.

A.D. 1905. — circumstances to all consumers Provided also that notice of the effect of this enactment shall be endorsed on every demand note for gas rent.

PART IV.

MARKETS.

Power to
Corporation
to take tolls
in market.

22. As from the passing of this Act the Act of 1897 shall be amended by substituting in place of all the words in section 39 thereof (Tolls to be taken for the market) the following words (that is to say) :—

The Corporation may demand and receive the tolls rents stallages and charges specified in the Third Schedule to this Act or such other tolls rents stallages and charges as the Local Government Board may from time to time by order upon the application of the Corporation substitute in place thereof from persons selling or offering or exposing for sale animals or things in any market of the Corporation or using or occupying stalls standings or other conveniences in any such market and the Corporation may require that any such tolls rents stallages and charges be paid in advance Section 36 and Schedule IV. of the Act of 1881 are hereby repealed.

Amendment
of Third
Schedule to
Act of 1897.

23. The Third Schedule to the Act of 1897 is hereby amended by substituting in place of the words in paragraph (A) of Part II. thereof “not herein-before specifically charged or enumerated” the words “not specifically charged or enumerated in this part of this schedule.”

Tolls to be
payable by
successive
sellers of
articles.

24. The several tolls in the markets payable in respect of any articles shall be paid not only by the original seller but also by any subsequent seller or person who exposes such article for sale and such tolls shall become payable before such article is so exposed for sale.

Removal of
animals sus-
pected of
tuberculosis.

25. The market-keeper any officer of the market the inspector of nuisances or any constable may remove and exclude from the cattle market of the Corporation all animals which after inspection by a duly registered veterinary surgeon shall be suspected by such surgeon to be affected with tubercular disease.

Exclusion
of old and
diseased
animals.

26. The market-keeper any officer of the market the inspector of nuisances or any constable may remove and exclude from the cattle market any old emaciated or diseased animal

which in the opinion of a duly registered veterinary surgeon is unfit for human food and may exclude from the cow market any old emaciated or diseased cow. A.D. 1905.

27. Nothing in this Part of this Act shall interfere with the operation or effect of the Diseases of Animals Act 1894 or of any order of the Board of Agriculture and Fisheries made thereunder. Saving of Diseases of Animals Act 1894.

PART V.

ELECTRICITY.

28. The Corporation may provide sell let for hire and fix set up alter repair and remove (but shall not manufacture) lamps meters motors electric lines fittings apparatus and things for lighting heating and motive power and for all other purposes for which electrical energy can or may be used or otherwise necessary or proper for the supply distribution consumption or use of electrical energy and may provide all materials and do all works necessary or proper in that behalf and may require and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting fixing setting up altering repairing or removing of such lamps meters motors electric lines fittings apparatus and things as aforesaid and for securing (both as regards the consumer and third parties) their safety and return to the Corporation as the Corporation may think fit or as may be agreed upon between them and the person to or for whom the same are sold supplied let fixed set up altered repaired or removed. Power to supply electric fittings.

29. Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 or in the Order of 1898 a person shall not be entitled to demand from the Corporation a supply or the continuance of a supply of electrical energy for premises having a separate supply unless he shall have previously agreed to pay to the Corporation such minimum annual sum as will give to them a reasonable return on the capital expenditure and will cover other standing charges incurred by them to meet the possible maximum demand for those premises and the sum to be so paid shall be determined in default of agreement by arbitration under the Electric Lighting Act 1882. Supply of electricity where consumer has separate supply.

30. Twenty-four hours' notice in writing shall be given to the Corporation by every consumer before he shall quit any premises supplied with electrical energy by the Corporation Electric lighting consumers to give notice

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to Corpora-
tion before
removing.

and in default of such notice the consumer so quitting shall be liable to pay to the Corporation the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Corporation to supply electrical energy to such premises whichever shall first occur. Notice of the effect of this enactment shall be contained in or endorsed on every demand note for rent for charges for electrical energy.

Corporation
may refuse
to supply
electrical
energy in
certain cases.

31. The Corporation may refuse to supply electrical energy to any person whose payment for the supply of electrical energy is for the time being in arrear whether such payment be due to the Corporation in respect of a supply to the same or other premises.

Discount on
electric
lighting and
power ac-
counts.

32. The Corporation may if they think fit make an allowance by way of discount not exceeding the rate of five pounds per centum on all sums of money due to the Corporation for the supply of electric light or electrical power or energy from any person who pays the same within such time of the demand thereof as the Corporation think fit to prescribe in that behalf and notice to this effect shall be endorsed on every demand note in respect of such charges. Provided that the Corporation shall make the same allowance to all consumers under similar circumstances.

Altering date
for filling up
annual ac-
counts for
electric
lighting.

33. Notwithstanding anything in section 9 of the Electric Lighting Act 1882 contained the annual statement of accounts of the electric lighting undertaking of the Corporation for the time being shall after the passing of this Act be filled up on or before the thirtieth day of June in every year and shall be made up to the thirty-first day of March next preceding such date and section 9 of the Electric Lighting Act 1882 shall as from the passing of this Act be read and have effect as regards the undertaking of the Corporation as if the thirtieth day of June and the thirty-first day of March were therein mentioned instead of the twenty-fifth day of March and the thirty-first day of December.

Supply of
electrical
energy out-
side borough.

34. If the local authority for the urban district of Trawden or the local authority for the rural district of Burnley shall be authorised by Act of Parliament or by Provisional Order confirmed by Parliament to supply electrical energy within the said urban district or any portion of the said rural district

which comprises the parish of Foulridge respectively or if any company are so authorised to supply energy within such urban district or parish the Corporation and such local authority or company as the case may be may enter into and carry into effect agreements for the supply of electrical energy in bulk by the Corporation to such authority or company for use or distribution within such urban district or parish but such supply shall not be given if and so long as the same would interfere with the supply of electrical energy within the borough.

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35. It shall be lawful for the Corporation to supply electrical energy to the owners or lessees of the Colne and Trawden Light Railways authorised by the Colne and Trawden Light Railways Order 1901 for the purpose of working such light railways notwithstanding that they are partly situate beyond the area of supply of the Corporation as defined by the Colne Electric Lighting Order 1898 Provided that no energy shall be supplied by the Corporation under the provisions of this section in any district in which any local authority company or person shall be supplying energy under statutory authority without the consent in writing of such local authority company or person.

Power to supply electrical energy for working light railways.

36. The Corporation on the one hand and the mayor aldermen and burgesses of the borough of Nelson on the other hand may subject to the provisions of the Nelson Electric Lighting Order 1883 enter into and carry into effect agreements for the supply in bulk by the said mayor aldermen and burgesses to the Corporation of any electrical energy required by the Corporation for the purpose of working the aforesaid Colne and Trawden Light Railways in the event of the Corporation being unable by reason of a breakdown or otherwise to supply the necessary electrical energy from their own works but such supply shall not be given by the said mayor aldermen and burgesses if and so long as the same would interfere with the supply of electrical energy within the borough of Nelson.

Purchase of electricity in bulk.

37. Any expenses incurred or revenue obtained by the Corporation in carrying into effect the provisions of this Part of this Act shall be deemed to be expenses incurred or revenue obtained by the Corporation under the Electric Lighting Act 1882 and not otherwise provided for and the provisions of sections 7 and 8 of that Act shall extend and apply accordingly to such expenses.

Expenses and revenue under this Part of Act.

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PART VI.

INFECTIOUS DISEASE.

Protection
against in-
fection of
books from
lending
library.

38. No person shall take out of any public or lending library any book for use in any house in which there is a person suffering from infectious disease and no person shall return to any such library any book which has been to his knowledge exposed to infection from any infectious disease but he shall at once give notice that it has been exposed to infection to the inspector of nuisances who shall cause the same to be disinfected and then returned to the librarian or proprietor or destroyed and if destroyed the Corporation shall pay to the owner thereof its value. Any person who shall offend against this enactment shall be liable to a penalty not exceeding forty shillings.

Persons
engaged in
washing to
furnish lists.

39. Whenever it shall be certified to the Corporation by the medical officer that it is desirable with a view to prevent the spread of infectious disease that they should be furnished with a list of the customers of any person earning a livelihood or deriving gain by the washing or mangling of clothes the Corporation may require such persons to furnish to them a full and complete list of the names and addresses of the customers for whom such person washes or mangles or has washed or mangled during the past six weeks and such person shall furnish such list accordingly and the Corporation shall pay to him for every such list the sum of sixpence and at the rate of sixpence for every twenty-five names contained therein and any person who shall wilfully or knowingly offend against this enactment shall for each such offence be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Dairymen to
notify infec-
tious disease
among their
servants.

40. Every dairyman supplying milk within the borough from premises whether within or beyond the borough shall notify to the medical officer all cases of infectious disease among persons engaged in or in connexion with his dairy as soon as he becomes aware or has reason to suspect that such infectious disease exists and any dairyman who makes default in so doing shall be liable to a penalty not exceeding forty shillings.

Medical
officer may
require
dairymen to
furnish lists.

41. If the medical officer shall have reasonable cause to believe that any person in the borough is suffering from infectious disease attributable to milk supplied within the borough he may by notice in writing require every person supplying milk to the person so suffering or to the house of which he is an inmate

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to furnish him with a list of all the farms dairies or places from which such person derives his supply of milk or from which he has derived his supply during the last six weeks and a list of the persons to whom he has within such six weeks supplied milk within the borough and the Corporation shall pay to him for such list the sum of sixpence and after the rate of sixpence for every twenty-five names contained therein and every such person failing to comply with such request shall for each such offence be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

42. If any dairyman shall at the request of the Corporation stop his milk supply within the borough on account of the spread or suspected spread of infectious disease or the probability that the consumption of such milk may cause tuberculosis to persons residing within the borough the Corporation may make compensation to him for any loss occasioned by such stoppage and any such compensation may be paid out of the district fund or general district rate.

Compensation to dairy-men.

43. If any person shall at the request of the Corporation or of the medical officer stop his employment for the purpose of preventing the spread of infectious disease within the borough the Corporation may make compensation to him for any loss he may sustain by reason of such stoppage.

Power to compensate persons ceasing employment.

44. It shall not be lawful for any owner or driver of a public vehicle used for the carrying of passengers at separate fares knowingly to convey or for any other person knowingly to place in any such public vehicle a person suffering from any infectious disease or for a person suffering from any such disease to enter any such vehicle and every person offending against this enactment shall for every such offence be liable to a fine not exceeding forty shillings.

Prohibiting conveyance of infected persons in public vehicles.

45. If any person suffering from any infectious disease is conveyed in any public vehicle the owner or driver thereof as soon as it comes to his knowledge shall give notice to the medical officer and shall cause such vehicle to be disinfected and if he fails so to do he shall be liable to a fine not exceeding five pounds and the owner or driver of such vehicle shall be entitled to recover in a summary manner from the person so conveyed by him or from the person causing that person to be so conveyed a sum sufficient to cover any loss and expense incurred by him in connexion with such disinfection It shall be the duty

Driver of infected person to give notice.

A.D. 1905. of the Corporation when so requested by the owner or driver of such public vehicle to provide for the disinfection of the same free of charge except in cases where the owner or driver conveyed such person knowing that he was so suffering.

Cleansing of infected house and removal of persons therefrom.

46.—(1) Where it appears to the Corporation upon the certificate of the medical officer that the cleansing and disinfecting of any house or part thereof and of any articles therein likely to retain infection or the destruction of such articles would tend to prevent or check any infectious disease the Corporation may serve notice on the occupier or where the house or part thereof is unoccupied on the owner of such house or part thereof that the same and any such articles therein will be cleansed and disinfected or (as regards the articles) destroyed by the Corporation unless the person so notified informs the Corporation within a time to be specified in the notice from the receipt of the said notice that he will cleanse or disinfect the house or part thereof with any such articles or destroy such articles to the satisfaction of the medical officer as testified by certificate by him within a time fixed in the notice.

(2) If either—

(A) Within the time specified as aforesaid from the receipt of the notice the person on whom the notice is served does not inform the Corporation as aforesaid; or

(B) Having so informed the Corporation he fails to have the house or part thereof and any such articles disinfected or such articles destroyed as aforesaid within the time fixed in the notice; or

(C) The occupier or owner as the case may be without such notice gives his consent;

the house or part thereof and the articles shall be cleansed and disinfected or such articles destroyed by the officers of and at the cost of the Corporation.

(3) For the purpose of carrying into effect this section the Corporation may enter on any premises between nine o'clock in the morning and six o'clock in the evening.

(4) When the Corporation have disinfected any house part of a house or any article under the provisions of this section they shall compensate the occupier or owner of such house or part of a house or the owner of such article for any damage thereby caused to such house part of a house or article and when the

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Corporation destroy any article under this section they shall reasonably compensate the owner thereof and the amount of any such compensation shall be recoverable summarily as a civil debt.

(5) If the Corporation deem it necessary to remove from any house or part thereof all or any of the residents not being themselves sick on account of the existence or recent existence therein of infectious disease or to disinfect such house or part thereof they may make application to a justice and the justice if satisfied of the necessity of such removal may grant a warrant authorising the Corporation to remove such residents and imposing such conditions as to time and otherwise as to him may seem fit. Provided always that no such warrant shall be necessary when the removal is carried out with the consent of any such resident or his parent or guardian. The Corporation shall and they are hereby empowered to provide free of charge temporary shelter with any necessary attendants for such persons while prevented from returning to such house or part thereof.

(6) For the purpose of this section the word "house" includes any tent van shed or similar structure used for human habitation.

(7) The Corporation may for the purposes of this section either themselves build a place of reception or contract for the use of any place of reception.

(8) Any expenses incurred by the Corporation under this section shall be paid out of the district fund or general district rate.

47. Any person taking or sending to any public washhouse or to any person for the purpose of being washed or mangled any bedding clothing or other things which to his knowledge have been exposed to infection from infectious disease shall previously to so taking or sending the same cause such bedding clothing or other things to be disinfected by the Corporation or to the satisfaction of the medical officer and in default shall be liable to a penalty not exceeding forty shillings and the Corporation shall make provision for disinfecting and shall on application disinfect at their expense such bedding clothing and other things.

Disinfection
of clothes.

48.—(1) Where on the certificate of the medical officer it appears to the Corporation that any articles in any house or part thereof are in such a filthy and dangerous or unwholesome condition that health is affected or endangered thereby or that

Unwhole-
some articles
to be purified,

A.D. 1905. the cleansing or purifying or destroying of any such articles is requisite to prevent risk of or to check infectious disease the Corporation may cause any such articles in any such house or part thereof to be at their own expense cleansed or purified or they may destroy the same.

(2) If any owner suffer any unnecessary damage the Corporation shall compensate him for the same and the Corporation shall also reasonably compensate the owner for any articles destroyed.

Penalty on parent or guardian permitting infected child to attend school.

49. No person being the parent or having the care or charge of a child who is or has been suffering from infectious disease shall after a notice from the medical officer that the child is not to be sent to school permit such child to attend school without having procured from the medical officer a certificate (which shall be granted free of charge upon application) that in his opinion such child may attend without undue risk of communicating such disease to others. If any person offends against this enactment he shall be liable to a penalty not exceeding forty shillings.

Power to medical officer to examine school children.

50. The medical officer may enter any public elementary school within the borough at all reasonable times and examine the scholars attending the same and may exclude from attendance thereat for such period as he shall consider requisite any scholar who in his opinion is suffering from infectious disease or is likely to spread infection.

The medical officer shall upon the exclusion of any scholar in manner aforesaid give notice thereof in writing to the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends and shall send a copy of such notice to the parent or guardian of the scholar.

Any person who shall obstruct the medical officer in carrying into effect the provisions of this section or who shall permit any scholar to attend school after he shall have been excluded as aforesaid and before the expiration of the period of exclusion shall be liable to a penalty not exceeding forty shillings.

Principal of school to furnish list of pupils in certain cases.

51. Whenever any scholar who attends any school within the borough shall be suffering from any infectious disease the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or

person in charge of the whole school) the person in charge of the department which such scholar attends shall forthwith on becoming aware of the fact send notice thereof to the medical officer and shall furnish to the Corporation at their request a list of the scholars attending thereat together with their addresses and in default thereof shall be liable to a penalty not exceeding forty shillings. The Corporation shall pay to the person furnishing any such list as aforesaid for such list the sum of sixpence and after the rate of sixpence for every twenty-five scholars named therein. A.D. 1905.

52. When any person suffering from infectious disease whereof notice shall have been given to the medical officer shall die in the borough of such disease the medical officer shall give notice thereof to the person responsible for the conduct of the burial of the body of such person and it shall not be lawful to transport such body by railway or other public conveyance (not being a conveyance reserved for such purposes) unless and until the medical officer has certified that every precaution necessary for the public safety has been adopted to his satisfaction and any person so responsible who shall after the giving of such notice knowingly remove or assist in removing such body without such certificate and any person who unless unaware of such notice shall procure or endeavour to procure the removal of such body without having obtained such certificate shall be liable to a penalty not exceeding ten pounds. Certificate required before removal by railway of body of person dying of infectious disease.

53. The Corporation shall cause public notice to be given of the effect of the provisions of this Part of this Act by advertisement in a local newspaper and by handbills or otherwise in such manner as they think sufficient and this Part of this Act shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Corporation may fix. Public notice to be given of provisions of this Part of Act.

PART VII.

ICE CREAMS.

54.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice creams or other similar commodity who within the borough— For regulating manufacture and sale of ice creams.

(A) Causes or permits ice creams or any similar commodity or any materials used in the manufacture thereof

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to be manufactured sold or stored in any sleeping room or cellar or in any room or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain ; or

(B) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination ; or

(C) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer ;

shall be liable for every such offence on summary conviction to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building any part of which is used for the manufacture of ice creams or any similar commodity suffering from any infectious disease the medical officer may seize and destroy all ice cream or similar commodity or materials for the manufacture of the same in such building and the Corporation shall compensate the owners of the ice cream or similar commodity or materials so destroyed.

Inspection
of premises.

55.—(1) Any officer duly authorised by the Corporation in that behalf shall at all reasonable times have the same power of entry and inspection into and of the premises of any manufacturer or vendor of or merchant or dealer in ice creams or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein as an officer of the Corporation would have under section 102 of the Public Health Act 1875 in the cases therein mentioned.

(2) Any person refusing entry into such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings for each offence.

As to dealers
in ice creams.

56. Every dealer in ice creams or other similar commodity vending his wares from any cart barrow or other vehicle or stand must have his name and address legibly painted or inscribed on such cart barrow or stand and if he fails to comply with this enactment he shall be liable to a penalty not exceeding forty shillings.

57. The Corporation shall cause to be given public notice of the effect of the provisions of this Part of this Act by advertisement in a local newspaper and by handbills and otherwise in such manner as they think sufficient and this Part of this Act shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Corporation may fix.

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 Notice of provisions of this part of Act.

PART VIII.

BUILDINGS.

58. All buildings or parts of buildings which may in future be erected on the site of any building or on any land which site or land in consequence of any improvement made by the Corporation becomes front land shall be erected according to such elevation as the Corporation approve and if the owner lessee or occupier of any building or land which on the making of any such improvement acquires a frontage to the street makes any door or entrance opening upon or communicating with the street or any wall or fence by the side of the street every such owner lessee or occupier shall make the building wall or fence in a line and the elevation thereof fronting to or towards the street in accordance with a plan approved by the Corporation and in case the Corporation for the space of six weeks after any plan of such elevation is submitted to them neglect to notify their determination in writing with reference thereto they shall be deemed to have approved thereof Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings The Corporation shall make compensation to the owner of any building or land for any loss or damage he may suffer by reason of the setting back or bringing forward of such building wall or fence.

Elevation of buildings erected on front land to be subject to approval of Corporation.

59. If any yard or open space in connexion with any dwelling-house erected before the passing of this Act shall not be so formed flagged asphalted or paved as to allow of the surface water being carried off to the drains the Corporation may give to the owner of such house notice in writing requiring him within fourteen days after such notice shall have been so given to proceed to form and to flag asphalt or pave such yard or open space for at least eighty-five square feet immediately adjoining the offices of such house or for the whole extent of

Yards to be paved.

A.D. 1905. — such yard or open space if the same be less than eighty-five square feet in area so as to allow of the surface water being carried off to the drains and within twenty-eight days after such notice shall have been so given to complete such works and if such owner shall make default in complying with any of such requirements within the respective times aforesaid the Corporation may execute the works necessary for carrying out such requirements and the expenses incurred by them in so doing shall be paid to the Corporation by such owner and may be recovered summarily as a civil debt.

Means of
escape from
buildings in
case of fire.

60. Every new building exceeding thirty-five feet in height (used or intended to be used as a tavern hotel boarding-house or school) shall be provided on the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in the case of fire for the persons dwelling or employed therein as may be reasonably required under the circumstances of the case and no such building shall be occupied until the Corporation shall have issued a certificate that the provisions of this section have been complied with in relation thereto.

Nothing in this section contained shall be deemed to interfere with the operation of sections 14 and 15 of the Factory and Workshop Act 1901 or of any Act amending the same.

Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Temporary
and movable
buildings.

61.—(1) Before any person erects or sets up any temporary or movable building he shall apply to the Corporation for permission so to do and such application shall be accompanied by a plan and sections of the proposed building drawn to a scale of not less than one inch to every eight feet and a block plan drawn to a convenient scale showing the intended situation and surroundings of the proposed building together with a specification describing the materials proposed to be used in the construction thereof and the purpose for which the building is intended.

(2) The Corporation shall within one month after the delivery of the plan and sections and specification signify in writing their approval or disapproval of the intended building to the person proposing to erect or set up the same.

(3) The Corporation may attach to their approval any condition which they may deem proper with regard to the sanitary

arrangement of such building the ingress thereto and the egress therefrom protection against fire and the period during which such building shall be allowed to stand. A.D. 1905.

(4) If any such building is commenced erected or set up without such application accompanied by such plan sections and specification or after the disapproval of the Corporation or before the expiration of one month without such approval or is in any respect not in conformity with any condition attached by the Corporation to their approval the person who commenced erected or set up such building or if any such building is not removed within the period allowed by the Corporation or any prolongation thereof the owner of such building shall be liable to a penalty for every such offence not exceeding forty shillings and to a daily penalty not exceeding the like amount and the Corporation may cause such building to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered summarily as a civil debt from the owner of the building or from the person erecting or setting up the same at their discretion.

(5) The following buildings and works shall be exempt from the operation of this section:—

- (A) Buildings expressly exempt from the operation of the Acts or byelaws for the time being in force within the borough in respect to new buildings and any tent not remaining for more than seven days;
- (B) Any wooden or other structure or erection of a movable or temporary character erected or set up for use during the construction alteration or repair of any building but such structure or erection shall be pulled down or removed immediately after the completion of such construction alteration or repair and if not so taken down or removed the Corporation may cause the same to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered summarily as a civil debt from the owner of the building or from the person erecting or setting up the same at their discretion;
- (C) Any wooden or other structure or erection erected or set up for the purpose of protecting or of preventing the acquisition of right of light; and

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(D) Buildings (other than a dwelling-house) erected or set up on the premises of any railway or canal company and used for the purposes of their railway or canal.

Power to sell materials of temporary buildings.

62. Where a temporary or other building referred to in the last preceding section is taken down or removed by the Corporation under the powers of this Part of this Act the Corporation may sell the materials thereof or any part of them and shall apply the proceeds of the sale in or towards payment of the costs and expenses incurred by them in relation to such building and shall pay the balance thereof to the owner of such building.

Forecourts to be fenced off from streets.

63. Whenever any person erecting any building shall be desirous of leaving an opening or of placing any steps or other projection in any forecourt area or space left in front of such building such forecourt area or space shall if required by the Corporation be well and sufficiently fenced off from the footpath or street and any person who shall offend against this enactment shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Exemption for railway property.

64. Nothing in this Part of this Act or in any byelaws to be made thereunder shall apply to any buildings (not being a dwelling-house) belonging to any railway company and used by such company as a part of or in connexion with their railway.

PART IX.

STREETS.

Corporation may declare where streets begin and end.

65. The Corporation may by resolution declare the point or limits at or within which any street is to be taken as beginning or ending.

Urgent repairs to private streets.

66.—(1) In cases where urgent repairs are required to any street not being a highway repairable by the inhabitants at large and where for want of such repairs danger exists to passengers or vehicles in such street the Corporation may give notice in writing to the owners of the premises fronting adjoining or abutting on such parts thereof as may require such repairs requiring them to execute within a time to be specified in such notice such repairs.

(2) If within such reasonable time as the Corporation may in such notice have specified the repairs are not executed the

Corporation may execute the repairs and may recover the cost of so doing from the owner or owners in default or if there be more than one owner in proportion to the frontage summarily as a civil debt. A.D. 1905.

(3) If the Corporation are unable to discover the name or abode of any owner the Corporation may execute such repairs without having served upon him any notice.

67. It shall not be lawful for any person without the consent of the Corporation in writing first obtained to lay any building materials rubbish or other thing or make any excavation on or in any street and when with such consent any person lays any building materials rubbish or other thing or makes any excavation on or in any street he shall at his own expense cause the same to be sufficiently fenced and a sufficient light to be fixed in a proper place on or near the same and to be continued every night from sunset to sunrise and shall remove such material rubbish or thing or fill up such excavation (as the case may be) when required by the Corporation and if any person fails to comply in any respect with the requirements of this enactment he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may remove any such materials rubbish or thing or fill up such excavation (as the case may be) and recover the expenses from the offender summarily as a civil debt.

Deposit of building materials or excavations not to be made in street without consent.

68. The Corporation may remove appropriate use and dispose of all old materials existing in any street at the time of the execution by the Corporation of any works in such street unless the owners of buildings and lands in such street within forty-eight hours after notice so to do served on them by the surveyor remove such materials or their respective proportions thereof and the Corporation may if they think fit allow such sum as they may fix to be the reasonable value thereof to such owners for any materials which have been used or removed by the Corporation.

Removal of materials in streets.

69. The Corporation may (if in the circumstances of the case they think it expedient to do so) make it a condition of approving the plans of any new street that such street shall be so laid out and formed that the same shall not terminate with a dead end or cul-de-sac and in any such case the street shall not be laid out and formed except in accordance with such condition unless the person laying out the street can show that it

Preventing formation of culs-de-sacs.

A.D. 1905. — would be unreasonable or impracticable for him to comply therewith and any person who shall offend against this enactment shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings.

Fencing land
adjoining
streets.

70. If any land (other than land now forming part of any common) adjoining any street be allowed to remain unfenced or the fences thereof are allowed to be or remain out of repair and such land is owing to the absence or inadequate repair of such fence a source of danger to passengers or is used for any immoral or indecent purpose or for any purpose causing inconvenience or annoyance to the public then after the expiration of fourteen days' notice from the town clerk to the owner or occupier of the same or without any notice if the Corporation are unable after diligent inquiry to discover the name or place of abode of such owner or occupier the Corporation may cause the same to be fenced or may cause the fences to be repaired in such manner as they think fit and the expenses thereby incurred shall be recoverable from such owner or occupier summarily as a civil debt.

Dangerous
places to be
repaired or
enclosed.

71. With respect to the repairing or enclosing of dangerous places the following provisions shall have effect (namely):—

- (1) If any building wall fence steps structure or other thing or any well excavation reservoir pond stream dam or bank is for want of sufficient repair protection or enclosure dangerous to the passengers along any street or footpath the Corporation may order the owner within the period specified in such order to repair remove protect or enclose the same so as to prevent any danger therefrom:
- (2) If after service of the order on the owner he shall neglect to comply with the requirements thereof within the prescribed period the Corporation may cause such works as they think proper to be done for effecting such repair removal protection or enclosure and the expenses thereof shall be payable by the owner and may be recovered summarily as a civil debt:
- (3) Section 65 of the Act of 1897 is hereby repealed.

For protec-
tion of Leeds
and Liver-
pool Canal
Company.

72. Nothing in the sections of this Act the marginal notes whereof are respectively "Fencing land adjoining streets" and "Dangerous places to be repaired or enclosed" shall impose

or be deemed to impose upon the Leeds and Liverpool Canal Company any further obligation in regard to fencing off the Leeds and Liverpool Canal or the towing-path thereof than they are at the passing of this Act liable to under the provisions of the Acts of Parliament relating to them or to render the said canal company liable for any expenses incurred by the Corporation in fencing or repairing the fences of or protecting or enclosing the said canal and towing-path except in so far as such expenses may have been incurred owing to any failure of the said canal company to comply with the provisions of such Acts of Parliament.

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73. If the footway of any street repairable by the inhabitants at large be injured by or in consequence of any excavations or other works on lands adjoining thereto the Corporation may repair or replace the footway so injured and all damages and expenses of or arising from such injury and repair or replacement shall be paid to the Corporation by the owner of the lands on which such excavations or other works have been made or by the person causing or responsible for the injury.

Recovery of damages caused to footways by excavations.

74. The Corporation may with the consent of two thirds in number and value of the ratepayers in any street alter the name of such street or any part of such street. The Corporation may cause the name of any street or of any part of any street to be painted or otherwise marked on a conspicuous part of any building or other erection.

Power to alter names of streets.

Any person who wilfully and without the consent of the Corporation obliterates defaces removes or alters any such name or number shall be liable to a penalty not exceeding forty shillings.

PART X.

SEWERS.

75. Where under the provisions of the Public Health Acts the Corporation have the power to require any street to be sewered by reason of such street not having theretofore been sewered to their satisfaction they may require the provision of separate sewers for the reception of surface water and of sewage respectively. The Corporation if such separate sewers have been provided may from time to time by resolution declare that any sewer or sewers for the time being belonging to them shall be appropriated and used for surface water only or for

Separate sewers.

A.D. 1905. sewage only and where in any street provision has been made for separate sewers for surface water and for sewage as aforesaid no sewage shall be allowed to pass into the surface water sewer and so far as practicable no surface or storm water shall be allowed to pass into the sewage sewer Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings Provided that in the case of any house or premises existing at the time of the provision of separate sewers as aforesaid the drains whereof were already connected with a sewer and would but for the provisions of this section have been sufficient to effectually drain such house or premises the Corporation shall at their own expense make all necessary alterations to the drain and pipes of such house or premises in order to keep separate the sewage and surface water drainage thereof and pending any such alteration the said penalty shall not apply Section 64 of the Act of 1897 is hereby repealed.

Corporation
may require
enlarged
sewer.

76. If in any new street the Corporation for the purpose of main drainage or otherwise shall require a larger sewer or drain to be made than they consider necessary for the ordinary sewerage or drainage of such new street the person laying out such new street shall construct such enlarged sewer or drain in accordance with the requirement of the Corporation and the additional cost thereof shall be paid by the Corporation.

Communi-
cation of old
drains with
sewers.

77. Before any drain existing at the time of the passing of this Act and then not communicating with any sewer of the Corporation shall be made to communicate with any sewer of the Corporation the Corporation may require the same to be laid open for examination by the surveyor and no such communication shall be made until the surveyor shall certify that such drain may be properly made to communicate with such sewer Any person offending against this section shall be liable to a penalty not exceeding five pounds.

Reconstruc-
tion of drains
already com-
municating
with sewers.

78.—(1) It shall not be lawful for any person to reconstruct or alter the course of any drain communicating with any sewer of the Corporation except in accordance with the provisions of the byelaws and regulations relating to the drainage of new buildings.

(2) Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

79. If a watercloset waste watercloset or drain is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such construction or repair was not due to any wilful act neglect or default be liable to a penalty not exceeding twenty pounds Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he proves to the satisfaction of the court that he had used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any penalty and the said other person may be summarily convicted of the offence.

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Improper
construction
or repair of
watercloset
or drain.

80.—(1) On complaint made on oath by the medical officer surveyor or inspector of nuisances that he has reasonable grounds for believing the existence of a nuisance any justice may grant a warrant to such medical officer surveyor or inspector of nuisances to jointly or severally inspect any drain sanitary convenience or cesspool or any water supply sink rain-water cistern trap syphon pipe or other work or apparatus connected therewith and on such warrant being granted for that purpose or for the purpose of ascertaining the course of any such work the surveyor medical officer or inspector of nuisances or their authorised assistants (on production of their authority if so required) at all reasonable times in the daytime after not less than twelve hours notice in writing has been given to the occupier of the premises to which such drain sanitary convenience or cesspool water supply sink rain-water cistern trap syphon pipe or other work or apparatus is attached or if they are unoccupied to the owner or if such owner or occupier is not known or cannot be found left on such premises and in case of emergency without notice may enter with or without workmen on such premises and cause the ground to be opened wherever the medical officer surveyor or inspector of nuisances or their authorised assistants think fit doing as little damage as may be.

Inspection
of drains.

(2) If any person obstructs or attempts to obstruct or incites any person to obstruct the medical officer surveyor or inspector of nuisances or assistants in the exercise of any of the powers

A.D. 1905. conferred by this section he shall for every such offence be liable to a penalty not exceeding five pounds.

(3) If upon such inspection it shall be found that no nuisance exists or that the nuisance is not caused by or is not attributable to such drain sanitary convenience or cesspool water supply sink rain-water cistern trap syphon pipe or other work and apparatus the Corporation shall cause any of such works or apparatus which they may have taken up or disturbed to be reinstated and made good as soon as may be and the expense of examining reinstating and making good the same shall be defrayed by the Corporation and full compensation shall be made by them for all damage or injury done or occasioned by such examination.

(4) If upon such inspection any drain sanitary convenience or cesspool water supply sink rain-water cistern trap syphon pipe or other work or apparatus is found to be in such a state as to cause a nuisance the Corporation shall cause notice to be served on the owner or occupier of the premises upon or in respect of which the inspection was made requiring him forthwith or within a reasonable time specified in the notice to do what is necessary to abate the nuisance.

(5) If such notice is not complied with the said owner or occupier shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings or the Corporation if they think fit in lieu of proceeding for a penalty may enter on the premises and execute the works and may recover the expenses incurred by them in so doing from the person in default summarily as a civil debt.

(6) For the purposes of this section the expression "drain" includes a drain used for the drainage of more than one building whether owned or occupied by the same person or not.

Corporation
may order
houses to be
drained by a
combined
operation.

81. If it appear to the Corporation that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Corporation may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Corporation if they so decide or by the owners in such manner as the Corporation shall direct and the cost and expense of such combined drain and of the repair and

maintenance thereof shall be apportioned between the owners of such houses in such manner as the Corporation shall determine and if such drain is constructed by the Corporation such cost and expense may be recovered by the Corporation from such owners summarily as a civil debt. Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer. Provided that the Corporation shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by the Corporation.

A.D. 1905.

82. The powers given by section 19 (Extension of 38 & 39 Vict. c. 55. sect. 41) of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner.

Amendment
of section 19
of Public
Health Acts
Amendment
Act 1890.

83. Any person who shall cause any drain watercloset waste watercloset earth-closet privy ashpit or dustbin to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging the same or any water supply apparatus pipe or work connected therewith or by otherwise wilfully stopping up or wilfully interfering with or improperly using the same or any such water supply apparatus pipe or work shall be liable to a penalty not exceeding five pounds. Provided that nothing in this section shall prejudice any right which the owner or occupier of any premises aggrieved by any such act may have to recover compensation in respect of any damage suffered by him by reason of such act.

Wilful dam-
age to drains
and water-
closets.

PART XI.

SKY SIGNS.

84.—(1) It shall not be lawful to erect or fix to upon or in connexion with any building or erection any sky sign and it shall not be lawful to retain any existing sky sign so erected or fixed for a longer period than three years after the passing of this Act nor during that period except with the licence of the Corporation and in the event of such licence being granted then only for such period not exceeding three years from the passing of this Act and under and subject to such terms and conditions as shall be therein prescribed:

Regulations
as to sky
signs.

A.D. 1905.

Provided that in any of the following cases a licence of the Corporation under this subsection shall become void namely:—

- (1) If any addition to any sky sign be made except for the purpose of making it secure under the direction of the surveyor;
- (2) If any change be made in the sky sign or any part thereof;
- (3) If the sky sign or any part thereof fall either through accident decay or any other cause;
- (4) If any addition or alteration be made to or in the house building or structure on over or to which any sky sign is placed or attached if such addition or alteration involves the disturbance of the sky sign or any part thereof; or
- (5) If the house building or structure over on or to which the sky sign is placed or attached become unoccupied or be demolished or destroyed:

Provided also that if any sky sign be erected or retained contrary to the provisions of this Act or after the licence for the erection maintenance or retention thereof for any period shall have expired or become void it shall be lawful for the Corporation to take proceedings for the taking down and removal of the sky sign in the same manner and with the same consequences as to recovery of expenses and otherwise in all respects as if it were an obstruction within the meaning of section 69 (Future projections of houses &c. to be removed on notice) of the Towns Improvement Clauses Act 1847.

(2) Any person acting in contravention of any of the provisions of this section or of the terms and conditions (if any) of any approval licence or consent under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

PART XII.

SANITARY PROVISIONS.

Rain water
pipes not to
be used as
soil pipes.

85. No pipe used for the carrying off of rain-water from any roof shall be used for the purpose of carrying off the soil or drainage from any privy or watercloset Any person who shall offend against this section shall be liable to a penalty not

exceeding five pounds and to a daily penalty not exceeding forty shillings. A.D. 1905.

86. No water pipe stack pipe or down-spout in existence at the date of the passing of this Act used for conveying surface water from any premises shall be used or be permitted to serve or to act as a ventilating shaft to any drain. Any person who shall offend against this section after fourteen days from the service upon him by the Corporation of notice of such offence shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Water or stack pipes not to be used as ventilating shafts.

87. The Corporation may by notice in writing require the owner or occupier of any dwelling-house to provide galvanised iron or enamelled iron dustbins in lieu of ashpits and such dustbins shall be of such size and construction as may be approved by the Corporation and any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings. Provided that this section shall not apply to any dustbins or ashpits in use at the passing of this Act so long as the same are of suitable size and in proper order and condition.

Regulation dustbins.

88. The Corporation may make byelaws for securing the cleanliness and freedom from pollution of tanks cisterns and other receptacles kept for storing water used or likely to be used by man for drinking or domestic purposes or for manufacturing drink for the use of man.

Cleansing of cisterns.

89. The owner of any dwelling-house which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Houses to be provided with water supply.

90. Any river stream or watercourse or any part or parts thereof respectively within the borough so choked or silted up as to obstruct or impede the proper flow of water along the same and thereby to cause or render probable an overflow of such river stream or watercourse on to or into land and property adjacent thereto shall be deemed a nuisance within the meaning of section 91 of the Public Health Act 1875 and all the provisions of that Act relating to nuisances shall apply

Watercourse choked up to be a nuisance under Public Health Act 1875.

A.D. 1905. — to every such river stream or watercourse notwithstanding that the same may not be injurious to health.

Public conveniences and lavatories.

91. The powers of the Corporation under section 39 of the Public Health Act 1875 and section 20 of the Public Health Acts Amendment Act 1890 shall extend to authorise them to provide and maintain in proper and convenient situations sanitary conveniences in or under any street repairable by the inhabitants at large and to provide and maintain in proper and convenient situations lavatories in or under any such street for the use of the public and to employ and pay attendants and to make reasonable charges for the use of any sanitary convenience (other than a urinal) or of any lavatory so provided and the Corporation may make byelaws for the management of such sanitary conveniences and lavatories and as to the conduct of persons frequenting the same and may let any such sanitary conveniences and any such lavatories for such periods at such rents and subject to such conditions as to the charges to be made for the use thereof and otherwise as they may think proper.

Corporation may require removal or alterations of urinals.

92. If any urinal or other sanitary convenience now or hereafter opening on any street shall be so placed or constructed as to be a nuisance or offensive to public decency the Corporation by notice in writing may require the owner to remove such urinal or convenience or otherwise to reconstruct the same in such a manner and with such materials as may be required to abate the nuisance and remove the offence against public decency Any person who fails within a reasonable time to comply with a notice under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Defining the establishing of a new business.

93. For the purposes of section 112 (Restriction on establishment of offensive trade in urban district) of the Public Health Act 1875 a trade business or manufacture shall be deemed to be established if it is removed from any one set of premises to any other premises or if it is renewed on the same set of premises after having been discontinued for a period of six months or upwards or if any premises on which it is for the time being carried on are enlarged without the sanction of the Corporation but a trade business or manufacture shall not be deemed to be established on any premises by reason only that the ownership of such premises is wholly or partially changed or that the building in which it is established having been wholly or partially pulled

down or burnt down has been reconstructed without any extension of its area. A.D. 1905.

94. For the purposes of the Public Health Acts—

(a) Any cistern used for the supply of water for domestic purposes so placed constructed or kept as to render the water therein liable to contamination causing or likely to cause risk to health ;

Enlarging
definition
of nuisances.

(b) Any gutter drain shoot stack pipe or down-spout of a building which by reason of its insufficiency or its defective condition shall cause damp in such building or in an adjoining building ;

(c) Any deposit of material in or on any building or land which shall cause damp in such building or in an adjoining building so as to be dangerous or injurious to health ;

shall be deemed to be a nuisance within the meaning of the said Acts.

95. All steam or gas ejected from any fixed engine or the boiler or condensers thereof and all condensing water above a temperature of one hundred and ten degrees Fahrenheit so ejected and all spent and ejected steam arising or produced in any trade business or manufacture shall be so discharged as not to be an annoyance to the public but nothing in this section shall apply to steam ejected from any locomotive boiler or engine now or hereafter belonging to any railway company Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

Ejection of
steam or gas
not to be an
annoyance to
public.

PART XIII.

RECREATION GROUNDS.

96. Any place of public resort market or recreation ground belonging to or under the control of the Corporation and any unfenced ground adjoining or abutting upon any street shall for the purposes of the Vagrancy Act 1824 and of any Act for the time being in force altering or amending the same be deemed to be an open and public place and shall be deemed to be a street for the purposes of section 29 of the Town Police Clauses Act 1847 and also for the purposes of

Extending
definition of
public place
and street
for certain
purposes.

A.D 1905. — so much of section 28 of that Act as relates to the following offences :—

Every person who suffers to be at large any unmuzzled ferocious dog or urges any dog or other animal to attack worry or put in fear any person or animal ;

Every person who rides or drives furiously any horse or carriage or drives furiously any cattle ;

Every common prostitute or night-walker loitering and importuning passengers for the purpose of prostitution ;

Every person who wilfully and indecently exposes his person ;

Every person who publicly offers for sale or distribution or exhibits to public view any profane indecent or obscene book paper print drawing painting or representation or sings any profane or obscene song or ballad or uses any profane or obscene language ;

Every person who wantonly discharges any firearm or discharges any missile or makes any bonfire.

Section 106 of the Act of 1897 is hereby repealed.

Corporation
may erect
band stands.

97. The Corporation may erect maintain furnish and equip and may remove band stands pavilions and other buildings and conveniences in the pleasure grounds or in any other park or garden belonging to or held by them which may be required or convenient for such ground park or garden or the public resorting thereto.

Expenses
and applica-
tion of
moneys.

98. All expenses incurred by the Corporation in the exercise of the powers of this Part of this Act and Part XII. (Recreation Grounds) of the Act of 1897 shall be paid out of the district fund and any moneys received by the Corporation in connexion with the execution of the purposes of this Part of this Act or Part XII. (Recreation Grounds) of the Act of 1897 shall be carried to the credit of the district fund.

PART XIV.

FIRE BRIGADE.

Regulation
of traffic at
fires.

99. The officer in charge of the police at any fire in the borough shall have power to stop or regulate the traffic in any street whenever in his opinion it is necessary or desirable to

stop or regulate such traffic for the purpose of extinguishing the fire or for the safety or protection of life or property and any person who wilfully disobeys any order given by such officer in pursuance of this section shall be liable to a penalty not exceeding five pounds Subsection 2 of section 107 of the Act of 1897 is hereby repealed. A.D. 1905.

100. The Corporation may subject to the sanction of the Local Government Board and under such conditions as that Board may prescribe from time to time erect on any land belonging to them and not specifically appropriated to other purposes such cottages as they think fit for the habitation of their firemen and may let the said cottages or any of them to such firemen on such terms and conditions at such rent or free from rent as the Corporation think fit. Firemen's cottages.

101. The Corporation and the local authority of any borough or urban or rural district may enter into and carry into effect agreements for the common use of any fire engines with their appurtenances and firemen belonging to the Corporation or such local authority or for mutual assistance in case of fire. Agreements with local authorities for common use of fire appliances.

PART XV.

POLICE.

102.—(1) The power to make byelaws conferred upon the Corporation by section 23 (Power of council to make byelaws) of the Municipal Corporations Act 1882 shall enable the Corporation to make byelaws for prohibiting any person or persons during Sundays in any street within the borough from crying or calling out for sale any newspaper journal or serial or from advertising by any cry or calling out any newspaper journal or serial or from ringing any bell or using any horn whistle or noisy instrument or creating any noise whatsoever for the purpose of selling any newspaper journal or serial or attracting or attempting to attract the attention of any person or persons by means of any noise whatsoever whether vocal or otherwise for the purposes aforesaid or any of them. Byelaws as to crying newspapers.

(2) The provisions of the Municipal Corporations Act 1882 with respect to byelaws made under section 23 of that Act shall extend and apply to byelaws made under this section.

103. Every person who shall ride or drive so as to endanger the life or limb of any person or to the common danger of the Reckless driving.

A.D. 1905. passengers in any thoroughfare shall be liable to a penalty not exceeding forty shillings and may be arrested without warrant by any constable who witnesses the offence.

PART XVI.

PUBLIC VEHICLES.

Powers of
inspectors of
public
vehicles.

104. Any person appointed by the Corporation in writing may examine all hackney carriages and other public vehicles plying for hire within the district and may see that the laws and byelaws relating to such public vehicles are duly observed. If any proprietor driver conductor or other person shall obstruct or hinder such person so appointed as aforesaid in the execution of his duty such proprietor driver conductor or person shall be liable to a penalty not exceeding forty shillings.

Public vehi-
cles plying
from railway
stations.

105. The provisions of the Town Police Clauses Acts 1847 and 1889 and the byelaws of the Corporation with respect to public vehicles shall be as fully applicable in all respects to public vehicles within the borough conveying passengers to or from any railway station within the borough as if such railway station were a public stand for public vehicles and also to such vehicles and the drivers thereof within a distance of seven miles from the Town Hall if the hiring takes place within the borough. Provided that if the hiring takes place within the borough any offence against any of the provisions of the said Acts or against any such byelaw whether such offence shall have been committed within the borough or not may be brought before and determined by a court of summary jurisdiction having jurisdiction in the borough. Provided also that the provisions of this section shall not apply to any vehicle belonging to or used by any railway company for the purpose of carrying passengers and their luggage to or from any of their railway stations or to the drivers or conductors of such vehicles.

Occasional
licences may
be granted.

106. An occasional licence for a public vehicle may be granted by the Corporation to be in force for such day or days or other period less than one year as may be specified in the licence.

Signature of
licences.

107. Any licence for a hackney carriage or omnibus or conductor of a hackney carriage or omnibus may be signed by the town clerk and need not be under the seal of the Corporation.

PART XVII.

A.D. 1905.

FINANCIAL PROVISIONS.

108.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest any sum or sums of money for the purposes herein-after mentioned not exceeding the respective amounts following (that is to say):—

Power to
Corporation
to borrow.

- (A) For the construction improvement and extension of waterworks the sum of ten thousand pounds ;
- (B) For the construction improvement and extension of the technical institute the sum of five thousand pounds ;
- (C) For the making good of balances overspent by the Corporation for purposes of technical instruction in excess of the funds and rates applicable for those purposes the sum of one thousand three hundred pounds ;
- (D) For paying the taxed costs charges and expenses of this Act as herein-after provided the sum requisite for that purpose ;

and with the approval of the Local Government Board such moneys as the Corporation may require for gasworks purposes and for any of the other purposes of this Act.

(2) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Corporation may mortgage or charge in the case of moneys borrowed for the purposes marked (B) and (C) in this section the borough fund and borough rate and in the case of all other moneys borrowed under this section the district fund and the general district rate and in the case of moneys borrowed for the purpose marked (A) in this section the revenue of their water undertaking in addition and in the case of moneys borrowed for gasworks purposes the revenue of their gas undertaking in addition.

109.—(1) The several sums of money which the Corporation have borrowed under the powers of the Act of 1897 and expended in the construction of the works referred to in the section of this Act the marginal note whereof is "Sanction of works constructed by Corporation at Wycollar" shall be deemed to have been borrowed on account of the sum of ten thousand pounds by this Act authorised to be borrowed for the

Borrowing
powers
under Act
of 1897.

A.D. 1905. construction improvement and extension of waterworks instead of under the powers of the Act of 1897 and forthwith upon the passing of this Act the Corporation shall make all necessary entries in their books for the purpose of transferring the same from the account of moneys borrowed under the Act of 1897 to the account of moneys borrowed under this Act.

(2) The powers conferred upon the Corporation under the Act of 1897 to borrow any sum or sums of money not exceeding one hundred and ten thousand pounds for the construction of waterworks and purchase of land shall so far as the same have not already been exercised for the purposes of the Act of 1897 be exerciseable only for the purpose of paying the cost of executing such of the waterworks authorised by the Act of 1897 as have not already been executed.

Mode of raising money.

110. The Corporation may raise all or any moneys which they are authorised to borrow under this Act either by mortgage or by issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another.

Certain regulations of Public Health Act as to borrowing not to apply.

111. In calculating the amount the Corporation are entitled to borrow under the Public Health Act 1875 the sums which the Corporation are authorised to borrow under this Act for purposes A and B mentioned in the section of this Act of which the marginal note is "Power to Corporation to borrow" shall not be taken into account.

Provisions of Public Health Act as to mortgages to apply.

112. Sections 236 237 and 238 (except as to the form of mortgage and transfer of mortgages) of the Public Health Act 1875 (as to the register and transfer of mortgages) shall extend and apply to mortgages granted under this Act.

Periods for payment off of money borrowed.

113. The Corporation shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed period") following (that is to say):—

As to moneys borrowed for the purpose (A) mentioned in the section of this Act whereof the marginal note is "Power to Corporation to borrow" within forty years from the date or dates of borrowing the same;

As to moneys borrowed for the purpose (B) mentioned in the said section within thirty years from the date or dates of borrowing the same;

As to moneys borrowed for the purpose (c) mentioned in the said section within ten years from the date or dates of borrowing the same; A.D. 1905.

As to moneys borrowed for the purpose (d) mentioned in the said section within five years from the passing of this Act;

As to moneys borrowed with the sanction of the Local Government Board within such period not exceeding sixty years as they may think fit to sanction.

114.—(1) Where the Corporation are authorised by any statutory borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose any money for the time being comprising the whole or any part of a sinking fund set aside by the Corporation for the repayment of a loan—

Power to use sinking fund instead of borrowing.

(A) Secured by a charge on the same rate fund or revenue as would be specifically chargeable (otherwise than under the provisions of the section of this Act whereof the marginal note is "Security for principal moneys") as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security; and

(B) Not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

(2) The Corporation when exercising the powers conferred on them by this section shall—

(A) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of moneys from such sinking fund;

(B) Credit such account or accounts in the sinking fund as the Corporation may determine with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund;

A.D. 1905.
—

(c) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from the sinking fund and thereupon the statutory borrowing powers shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security.

(3) The Corporation shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as that Board shall require.

Security for
principal
moneys.

115.—(1) Where the Corporation have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the corporate seal of the Corporation and may be made in the form contained in the schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with stock issued by the Corporation and with all other securities granted by the Corporation at any time after the date of the first creation of such stock.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation.

(5) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

(6) There shall be kept at the office of the Corporation a register of the mortgages granted under this section and within

fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the town clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds. A.D. 1905.

(7) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the schedule to this Act or to the like effect.

(8) There shall be kept at the office of the Corporation a register of the transfer of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the town clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee.

(9) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby.

(10) If the town clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

116.—(1) The treasurer shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money

Annual re-
turn to Local
Government
Board with
respect to
sinking fund.

A.D. 1905. — raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the treasurer showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the treasurer shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Mode of
payment off
of money
borrowed.

117. The Corporation shall pay off any moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of these methods and partly by another or others of them.

118. The Corporation may except as herein-after provided re-borrow for the purpose of paying off any moneys borrowed or re-borrowed under this Act or the Acts of 1881 and 1897 which have not been repaid and are intended to be forthwith repaid or in respect of any moneys which have been repaid by the temporary application of funds at the disposal of the Corporation within twelve months before the re-borrowing and which at the time of the repayment it was intended to re-borrow. Provided that the Corporation shall not have power to re-borrow for the purpose of paying off any moneys repaid by instalments or annual payments or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purpose. Provided also that any moneys re-borrowed shall be deemed to form the same loan as the money for the repayment of which the re-borrowing has been made and shall be repaid within the prescribed period. Section 52 of the Act of 1881 and so much of section 96 of the Act of 1897 as refers thereto is hereby repealed.

A.D. 1905.

Power to
re-borrow.

119. A person lending money to the Corporation under this Act shall not be bound to inquire as to the observance by the Corporation of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Protection of
lender from
inquiry.

120. The Corporation shall not be bound to see to the execution of any trust whether expressed implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation shall from time to time be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or any interest thereon not entered in their register and the Corporation shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any such money.

Corporation
not to regard
trusts.

121. The mortgagees of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal

Appoint-
ment of re-
ceiver.

A.D. 1905. or of principal and interest by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five hundred pounds in the whole The application for the appointment of a receiver shall be made to the High Court.

Application
of money
borrowed.

122. Money borrowed by the Corporation under this Act shall be applied only for the purposes of this Act to which capital is properly applicable and for which it is authorised to be borrowed.

Scheme
for fixing
equated
periods for
repayment of
loans.

123.—(1) The Corporation may at any time hereafter and from time to time make a scheme for prescribing one or more uniform periods within which all or any loans then contracted or about to be contracted by them under statutory borrowing powers (including the loans authorised by this Act) shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may make provision in regard to all matters incidental thereto.

(2) No scheme made by the Corporation under this section shall have any force or effect until confirmed by the Local Government Board who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act Provided that nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any Corporation stock existing at the time except with the consent of such mortgagee or holder.

(3) The Corporation may with the sanction of the Local Government Board borrow such sums as may be necessary for the purpose of giving effect to such scheme and for compensating the holders of securities of the Corporation for their consent thereto.

(4) Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

Expenses of
execution of
Act.

124. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made may be defrayed by the Corporation out of the borough fund and

borough rate or the district fund and general district rate as the Corporation may in their discretion having regard to the object of the expenditure deem just.

A.D. 1905.
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PART XVIII.

MISCELLANEOUS.

125.—(1) The Corporation may if they think fit grant gratuities (not exceeding one year's pay) to any of their officers or servants who may be disabled or injured in their service or may become incapacitated through age or other infirmity or to the widow or family of any such officer or servant who may die in their service.

Power to grant gratuities in certain cases.

(2) Every such gratuity shall be charged on and paid out of the fund or funds on or out of which the salary or wages or emoluments of such officer or servant would have been charged or paid if he had continued in his office or service.

126. The Corporation may appoint and remove such officers as they may deem necessary to assist the overseers of the parish of Colne in the discharge of their duties and the salaries and expenses of such officers shall be determined by the Corporation and paid out of the poor rate and other local rates and funds in such proportion as the Corporation shall determine.

Assistants to overseers of Colne.

127. All books of account minutes of proceedings maps deeds papers and writings and historical relics belonging to the parish of Colne now in the custody of the churchwardens overseers or assistant overseers or other persons may be deposited in the Corporation's offices at Colne and be there preserved by the town clerk and the ratepayers shall at all reasonable times have the same right of inspection of and making extracts from such books and minutes as they had prior to the passing of this Act.

Custody of books.

128. The Corporation may for purposes of public lighting or water supply or on the application of the owner or occupier of any premises within the limits of supply of the gas or water undertakings of the Corporation abutting on or being erected in any street laid out but not dedicated to public use or for the supply of such premises with gas or water lay down take up alter relay or renew in across or along such street such pipes wires and apparatus as may be requisite or proper for such purposes or the furnishing of such supply.

Power to lay mains and pipes in streets not dedicated to public use.

A.D. 1905.

For protec-
tion of Lan-
cashire and
Yorkshire
Railway
Company.

129.—(1) Whenever under the provisions of this Act the Corporation shall require to lay down place repair alter take up relay remove or renew any mains pipes culverts wires or apparatus upon across or under any railway for the time being belonging to or worked by the Lancashire and Yorkshire Railway Company (in this section called “the Company”) or the stations bridges approaches or other works thereof or to construct any works adjoining or in close proximity to any such railway they shall give to the engineer of the said railway fourteen days’ notice in writing of their intention to carry out any such works accompanied by sufficient plans.

(2) Such works including the making good and repairing of any roads over the railway and over any bridges and approaches which the Company are or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Corporation shall be laid constructed and executed by and at the expense of the Corporation under the superintendence and to the reasonable satisfaction of the said engineer and according to plans to be previously reasonably approved by him and so as to avoid as far as possible any injury to any such railway or any of the works thereof and so as not to cause any interruption of the passage or conduct of the traffic over or at any such railway or station.

(3) When the Corporation open or break up any road or pavement of any street or bridge or other works belonging to or repairable by the Company they shall with all convenient speed complete the work for which the same shall be broken up and reinstate and make good the road or works so opened or broken up and shall keep any road or pavement so broken up in good repair for three months after replacing and making good the same and for such further time if any as the soil so broken up shall continue to subside.

(4) If the Corporation make delay in completing such work or reinstating and making good such road or works so opened or broken up or neglect to keep the road or pavement in repair as aforesaid the Company may cause the work so delayed or omitted to be executed and the expense of executing the same shall be repaid to them by the Corporation.

(5) The Corporation shall repay to the Company the expense of any temporary works or watching which the Company may consider reasonably necessary to provide for the protection of the said railway or the traffic thereon during the carrying out

of the works over under upon or adjoining the railway or property of the Company. A.D. 1905.

(6) If any injury shall owing to or by reason of any of the matters aforesaid arise to any such railway or works or interruption to such traffic the Corporation shall make full satisfaction in respect thereof to the Company and in the event of any dispute as to the amount of such satisfaction the same shall be determined by arbitration in manner herein-after provided.

(7) Any difference which may arise between the Corporation and the Company under the provisions of this section shall unless otherwise agreed be settled by arbitration under the provisions of the Arbitration Act 1889 by an engineer to be appointed by the President of the Institution of Civil Engineers at the request of either party.

130. The Corporation may convert any clinkers or other refuse or surplus material or product arising in connexion with their dust destructor into slabs of artificial stone bricks concrete mortar and other materials and may upon any lands for the time being vested in them and available for the purpose construct such buildings and works and may in connexion therewith provide and erect such machinery plant and appliances as may be required and any such slabs bricks concrete mortar or other materials so produced may be utilised by the Corporation for repairing streets or for any other purposes connected with the work of the Corporation for which they may be suitable or may be sold by the Corporation who shall carry the proceeds arising from any sales thereof to the credit of the district fund.

Power to manufacture slabs &c. from destructor refuse.

131. Notwithstanding anything contained in section 175 of the Public Health Act 1875 any lands acquired by the Corporation in pursuance of any powers contained in that Act or in the Acts of 1881 or 1897 and not required for the purpose for which they were acquired may with the approval of and subject to such conditions as may be imposed by the Local Government Board be retained and used by the Corporation for any other purpose in like manner as if they had been originally acquired for such last-mentioned purpose.

Lands acquired for some purposes of Public Health Acts may be used for other purposes.

132. Where under the provisions of this Act the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses

Apportionment of expenses in case of joint owners.

A.D. 1905. — which under this Act are recoverable by the Corporation from the owner shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Expenses
may be de-
clared private
improvement
expenses.

133. The Corporation may declare any expenses incurred by them under the provisions of this Act which are recoverable from the owner or owners of any premises to be private improvement expenses and thenceforth those expenses may be recovered and shall be charged upon the premises in respect of which they were incurred in accordance with the provisions of section 257 of the Public Health Act 1875.

Authenti-
cation and
service of
notices.

134. Where any notice or demand under this Act requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication. Notices orders and other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided always that in the case of any company any such notice or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

As to appeal.

135. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence or consent or approval of or by the Corporation or of or by any officer of the Corporation or by any conviction or order made by a court of summary jurisdiction under any provision of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order the Corporation may in like manner appeal.

Recovery of
penalties.

136. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

137. The following sections of the Act of 1897 are incorporated herewith and shall apply (*mutatis mutandis*) to and in relation to this Act:—

Section 98 Inquiries by and expenses of Local Government Board;

Section 101 General provisions as to byelaws;

Section 102 Compensation how to be determined;

Section 110 Information by whom to be laid;

Section 112 Consent of Corporation to be in writing;

Section 113 Damages and charges in case of dispute to be settled by justices;

Section 116 Penalties to be paid over to the treasurer;

Section 117 Powers of Act cumulative.

Sections 111 114 and 115 of the Act of 1897 are hereby repealed.

138. Where in any legal proceedings taken by or on behalf of the Corporation whether under this Act or under any general or local Act passed before or after this Act it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the Corporation or to prove any resolution of the Corporation or of any committee of the Corporation a certificate of such appointment authority or resolution purporting to be authenticated by the signature of the mayor or the town clerk shall be *prima facie* evidence of such appointment authority or resolution without further proof of the holding of any meeting or the production of any minute book or other record or document.

139. No matter or thing done or contract entered into by the Corporation nor any matter or thing done by the town clerk or by any member officer or clerk of the Corporation or any person whomsoever acting under the direction of the Corporation shall if the matter or thing be done or the contract be entered into *bonâ fide* for the purpose of executing this Act subject them or any of them personally to any action liability claim or demand whatsoever and any expense incurred by the Corporation or town clerk member officer clerk or person acting as last aforesaid shall be borne and repaid out of any of the funds at the disposal of the Corporation.

A.D. 1905.
—
Incorporation of parts of Act of 1897 and repeal of other parts.

Evidence of appointment.

Persons acting in execution of Act not to be personally liable.

A.D. 1905.

Saving for
indictments.

140. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequences to which he would have been liable if such matter had not been made punishable by this Act. Provided that no person shall be punished more than once for the same offence.

Judges not
disqualified.

141. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being a member of the Corporation or liable to any rate.

Crown
rights.

142. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown.

Costs of Act.

143. The costs charges and expenses preliminary and of and incidental to preparing and obtaining this Act as taxed by the taxing officer of the House of Lords or House of Commons shall be paid by the Corporation out of moneys to be borrowed by the Corporation under this Act but may in the first instance be paid by the Corporation out of the district fund or general district rate.

THE SCHEDULE.

A.D. 1905.

FORM OF MORTGAGE.

Borough of Colne.

By virtue of the Colne Corporation Act 1905 and of other their powers in that behalf them enabling the mayor aldermen and burgesses of the borough of Colne in the county palatine of Lancaster (herein-after referred to as "the Corporation") in consideration of the sum of pounds paid to the treasurer of the borough by (herein-after called "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Corporation in the said Act defined as the sum of pounds doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the said sum of pounds shall be fully paid to [him] [or them] with interest for the same [subject as herein-after provided] after the rate of per centum per annum from the day of one thousand nine hundred and until payment of the said principal sum such interest to be paid half yearly [to the bearer of the coupons or interest warrants hereunto annexed or to be hereafter annexed hereto on the days and at the place therein mentioned] [on the day of and the day of in each year]:

And it is hereby agreed that the said principal sum of pounds shall be repaid at the town hall in the said borough [(subject as herein-after provided) on the day of one thousand nine hundred and] [by]:

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be mentioned and specified in an endorsement to be made hereon under the hands of the mayor and town clerk of the said borough for the time being respectively and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Corporation have caused their common seal to be hereunto affixed this day of one thousand nine hundred and

Passed under the common seal of the Corporation in the presence of

Mayor.
Town Clerk.

A.D. 1905.

This mortgage is duly registered in the register of mortgages kept by me pursuant to the provisions in that behalf.

Dated this day of one thousand nine hundred and

Town Clerk.

The Endorsement within referred to.

The within-named consenting the within-mentioned time for repayment of the within-mentioned principal sum of is hereby extended to the day of one thousand nine hundred and [and the interest to be paid thereon on and from the day of one thousand nine hundred and is hereby declared to be after the rate of per centum per annum].

Dated this day of one thousand nine hundred and

Witness

Mayor.

Town Clerk.

FORM OF TRANSFER OF MORTGAGE.

Borough of Colne.

I [the within-named] *A.B.* [of] in consideration of the sum of pounds paid to me by of (herein-after called "the transferee") do hereby transfer to the transferee [his] executors administrators and assigns [the within written security] [the mortgage (number) of the revenues of the Corporation of the borough of Colne at the yearly rate of per centum bearing date the day of] and all my right and interest under the same subject to the several conditions on which I hold the same at the time of the execution hereof and I the transferee for myself my executors administrators and assigns do hereby agree to take the said mortgage security subject to the same conditions.

Dated this day of one thousand nine hundred and

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